

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Team # 4	CCRB Case #: 201411610	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/15/2014 12:01 AM	Location of Incident: 37th Avenue and 58th Street	18 Mo. SOL 5/15/2016	Precinct: 108		
Date/Time CV Reported Mon, 11/17/2014 11:12 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 11/17/2014 11:12 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Hassan Raza	09198	949529	108 PCT
2. POM Felix Cortez	25451	950234	108 PCT
3. POF Faatimah Irvin	26437	952881	108 PCT
4. POM Dominic Ruggiero	20894	952194	108 PCT
5. SGT Jack Wu	1894	937758	108 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dominic Ruggiero	Abuse: PO Dominic Ruggiero stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM Felix Cortez	Abuse: PO Felix Cortez frisked § 87(2)(b)	B . Substantiated
C . POM Felix Cortez	Abuse: PO Felix Cortez searched § 87(2)(b)	C . Substantiated
D . SGT Jack Wu	Abuse: Sgt. Jack Wu searched the vehicle in which § 87(2)(b) was an occupant.	D . Substantiated
E . POF Faatimah Irvin	Abuse: PO Faatimah Irvin searched the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . POM Dominic Ruggiero	Abuse: PO Dominic Ruggiero searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . POM Hassan Raza	Abuse: PO Hassan Raza threatened § 87(2)(b)	G . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 14, 2014, going into November 15, 2014, at approximately 12:00 a.m. § 87(2)(b) was driving northbound on 37th Avenue in Queens. As § 87(2)(b) neared the intersection of 58th Street and 37th Avenue he observed two double parked vehicles, an unmarked grey Impala and a marked police sedan, blocking a portion of the travel lane. § 87(2)(b) drove around the vehicles, and was allegedly signaled to pull over by the lights of the unmarked grey Impala (**Allegation A**). The marked sedan followed along, and officers identified by the investigation as Sgt. Jack Wu, PO Dominic Ruggiero, PO Faatimah Irvin, PO Felix Cortez, and PO Hassan Raza exited from both vehicles. PO Irvin approached on the driver's side of § 87(2)(b)'s car, and asked for his license while Sgt. Wu, PO Ruggiero, PO Cortez, and PO Raza stood around § 87(2)(b)'s vehicle. § 87(2)(b) provided his license to PO Irvin, who immediately asked § 87(2)(b) to step out of his car. § 87(2)(b) complied, stood at the back of his vehicle with PO Raza, and was allegedly frisked and searched by PO Cortez (**Allegations B and C**). Meanwhile, Sgt. Wu, PO Irvin, and PO Ruggiero allegedly searched inside § 87(2)(b)'s vehicle (**Allegations D, E, and F**). PO Raza allegedly told § 87(2)(b) "I'm going to make it my job to recognize your car, and I'm going to pull you over and give you a hard time, every single time" (**Allegation G**). After approximately 15 minutes, PO Irvin returned § 87(2)(b)'s identification, and § 87(2)(b) left the location without an arrest or summons.

Mediation, Civil, and Criminal Histories

- Mediation was offered to § 87(2)(b) who opted to have his complaint investigated.
- A notice of claim inquiry has been submitted to the NYC Comptroller's Office, and will be included in the case file upon its receipt.

● [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 13).
- PO Raza has been a member of service for four years. PO Raza has had five prior CCRB complaints filed against him involving 13 allegations, none of which have been substantiated. PO Raza has had § 87(2)(g) CCRB case 201204235 for false official statement, § 87(2)(g) Sgt. Stiene of the IAB/CCRB Liaison Unit confirmed that PO Raza's false official statement in CCRB case 201204235 was unsubstantiated by IAB Group 34 on June 2, 2014 (encl. 99).
- PO Cortez has been a member of service for three years. PO Cortez has had five prior CCRB complaints filed against him, involving 9 allegations, none of which have been substantiated. § 87(2)(g)

- PO Irvin has been a member of service for two years. This is the first CCRB complaint filed against her (encl. 10).
- PO Ruggiero has been a member of service for three years. PO Ruggiero has had two prior CCRB complaints filed against him, involving 2 allegations, none of which have been substantiated § 87(2)(g) (encl. 11).
- Sgt. Wu has been a member of service for ten years. This is the first CCRB complaint filed against him (encl. 12).

Findings and Recommendations

Identification of the Subject Officers

In his CCRB testimony, § 87(2)(b) provided the following physical descriptions for the three officers who exited from the unmarked grey Impala: PO1, a dark skinned female, African American or Hispanic, standing approximately 5'4" with curly hair, in her late twenties or early thirties with an average build, dressed in uniform; PO2, a white male standing approximately 5'8" with a muscular build, dark brown hair, in his early thirties, dressed in uniform; and PO3, an Asian male standing 5'9", with a slim build, in his thirties, dressed in plainclothes with a hat, jeans, boots, and a black bubble jacket. Additionally, § 87(2)(b) believed PO3 was a sergeant, as he heard PO4 refer to him as such. § 87(2)(b) provided the following physical descriptions for the two officers who exited from the marked sedan: PO4, a light skinned Hispanic male with brown hair and a stocky build, in his late twenties or thirties, dressed in uniform, and PO Raza, a Pakistani male with a slim build, glasses, and dressed in uniform, whose name § 87(2)(b) obtained from his nametag. § 87(2)(b) was familiar with PO Raza, as he had prior interactions with him.

§ 87(2)(g) According to the 108th Precinct roll call, Sgt. Wu was the only Asian male sergeant on duty during tour 1 on November 15, 2014. Additionally, the roll call revealed that Sgt. Wu was assigned to vehicle § 87(2)(b) with PO Irvin, a black female, and PO Ruggiero, a white male (encl. 73-74). According to the 108th precinct roll call, Sgt. Wu, PO Irvin, and PO Ruggiero were the only officers partnered together on the date of the incident that matched with § 87(2)(b)'s descriptions of an Asian male sergeant, a black female, and a white male. § 87(2)(g) the daily vehicle assignment sheet confirmed that vehicle § 87(2)(b) to which Sgt. Wu, PO Irvin, and PO Ruggiero were assigned, was an unmarked car (encl. 76, 127). Fleet services confirmed that vehicle § 87(2)(b) is a grey unmarked Chevrolet Impala and is the only such vehicle assigned to the 108th precinct (encl. 75). While PO Ruggiero recalled working only with Sgt. Wu and Sgt. Wu only documented working with PO Ruggiero in vehicle § 87(2)(b) it was confirmed through the roll call as well as PO Irvin's statement and memo book entries that she was also working with Sgt. Wu and PO Ruggiero.

The 108th precinct roll call also confirmed that PO Raza was on duty, and partnered with PO Cortez, a Hispanic male (encl. 73-74). PO Raza and PO Cortez were assigned to vehicle 4032, a marked sedan.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that he was initially stopped by the unmarked grey Impala, after which multiple officers exited from both the unmarked and marked vehicle and interacted with him. § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Dominic Ruggiero stopped the vehicle in which

§ 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: PO Felix Cortez frisked § 87(2)(b)

Allegation C – Abuse of Authority: PO Felix Cortez searched § 87(2)(b)

Allegation D – Abuse of Authority: Sgt. Jack Wu searched the vehicle in § 87(2)(b) was an occupant.

Allegation E – Abuse of Authority: PO Faatimah Irvin searched the vehicle in which § 87(2)(b) was an occupant.

Allegation F – Abuse of Authority: PO Dominic Ruggiero searched the vehicle in which

§ 87(2)(b) was an occupant.

Allegation G – Abuse of Authority: PO Hassan Raza threatened § 87(2)(b)

§ 87(2)(b) stated that as he neared the intersection of 58th Street and 37th Avenue he observed a marked police sedan and an unmarked grey Impala double-parked and blocking the street. § 87(2)(b) drove around the two cars, and was immediately pulled over by the unmarked grey Impala. Sgt. Wu, PO Irvin, and PO Ruggiero exited the unmarked car and PO Raza and PO Cortez exited marked sedan. PO Irvin approached the driver's side of § 87(2)(b)'s vehicle and asked for his license as the other officers stood around his vehicle. § 87(2)(b) provided his identification, and PO Irvin immediately asked § 87(2)(b) to step out of the car. § 87(2)(b) was instructed to stand at the back of his vehicle with PO Raza and PO Cortez, where he was frisked and searched by PO Cortez. Meanwhile, Sgt. Wu, PO Irvin, and PO Ruggiero searched inside § 87(2)(b)'s vehicle. From where he was standing, § 87(2)(b) observed that Sgt. Wu searched his glove compartment, PO Irvin searched the front driver's side area, and PO Ruggiero searched the back seat area. § 87(2)(b) also noted that the officers took turns searching these areas. § 87(2)(b) told PO Raza that this was the third time he had been pulled over in a month (in his telephone statement to the CCRB, § 87(2)(b) added that these prior vehicle stops had been conducted by PO Raza and his partner). In response, PO Raza told § 87(2)(b) "I'm going to make it my job to recognize your car, and I'm going to pull you over and give you a hard time, every single time." PO Irvin returned § 87(2)(b)'s identification, and § 87(2)(b) was permitted to leave the location. § 87(2)(b) was not arrested or issued a summons, and was not given a reason for the vehicle stop (encl. 17-22).

In his CCRB testimony, PO Raza denied having an independent recollection of the incident. PO Raza denied stopping a vehicle occupied by § 87(2)(b) and did not recall seeing any other officers do so. PO Raza denied stating "I'm going to make it my job to recognize your car, and I'm going to pull you over and give you a hard time, every single time." Additionally, PO Raza denied seeing any officers search § 87(2)(b)'s car and denied seeing an officer frisk or search § 87(2)(b). Although he denied any interaction with § 87(2)(b) or with anyone matching his description on November 15, 2014, at the conclusion of his interview, when asked if he had anything else to add, PO Raza stated that § 87(2)(b)'s name sounded familiar and brought to mind a civilian to whom he had issued a summons for § 87(2)(b) on an unknown date "a while back" in the same area as the reported incident. This civilian had told PO Raza that he takes the same route every day and always smokes marijuana. PO Raza added, and repeated several times, that if § 87(2)(b)'s car stop was his stop as opposed to a fellow officer's stop, he would have noted it in his memo book because he had been cited previously by the CCRB for failure to make a memo book entry regarding another car stop. He also stated that he would note in his memo book if he stopped to assist another unit with their car stop. PO Raza noted that there are not many people in his precinct with the name § 87(2)(b) but stated that he could not be sure without seeing a photograph if § 87(2)(b) was the person whom he recalled issuing a summons to (encl. 24-30).

PO Raza was re-interviewed at the CCRB after it was determined he read the wrong memo book entry during his initial interview and in order to show him a newly obtained photograph of § 87(2)(b). Upon viewing the photograph, PO Raza denied that § 87(2)(b) appeared familiar to him, and denied that he had issued § 87(2)(b) a summons previously. When asked if he ever interacted with § 87(2)(b) PO Raza replied, “not that I remember of” (encl. 31-38).

Sgt. Wu, PO Ruggiero, PO Irvin, and PO Cortez all denied having any independent recollection of the incident, and denied participating in any vehicle stop involving § 87(2)(b) (encl. 39-72). The investigation found that § 87(2)(b) had been previously arrested by PO Irvin approximately two months prior to this incident, approximately two blocks away from this incident’s location, for § 87(2)(b) (encl. 56-58). Additionally, Sgt. Wu is listed on the arrest report as the supervising officer for the arrest. During her CCRB testimony, PO Irvin was shown § 87(2)(b)’s arrest photograph. Though PO Irvin recognized § 87(2)(b) from the arrest photograph, she denied seeing § 87(2)(b) again after his arrest. Sgt. Wu was also shown § 87(2)(b)’s arrest photograph, and had no recollection of interacting with him. Sgt. Wu and PO Irvin denied seeing PO Raza and PO Cortez out in the field on the date of incident, while PO Ruggiero did not recall if he saw them.

The memo books of PO Raza and PO Cortez contain no entries between 9:30 p.m. on November 14, 2014 and 12:20 a.m. on November 15, 2014, at which point they documented a summons being issued outside of the 108th Precinct stationhouse (encl. 34, 41). PO Raza described the stationhouse as being approximately eight minutes away from the incident location by car. The memo books of PO Ruggiero and PO Irvin note that they were part of an underage alcohol operation at § 87(2)(b) at 11:35 p.m., and that at 12:20 a.m. summonses were issued at 53rd Street and Roosevelt Avenue (three minutes by car from the incident location, according to Google Maps) (encl. 45, 62). Sgt. Wu’s memo book notes the same, although his entry about being at 53rd Street and Roosevelt Avenue marks the time as 12:00 a.m. (encl. 68).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) described Sgt. Wu as being in plainclothes when Sgt. Wu believed based on his Conditions assignment that he was in uniform at the time of the incident. Still, Sgt. Wu did not recall with certainty whether he was in uniform or plainclothes at the time. He stated that there are special operations during which he might wear plainclothes, and an underage bar inspection is possibly such an operation.

The officers’ memo book entries do not place them directly at the intersection of 37th Avenue and 58th Street at midnight, and Sgt. Wu’s memo book indicates that at 12:00 a.m. he was already at 53rd Street and Roosevelt Avenue. However, § 87(2)(b) reported the incident two days after the alleged stop and described the time he reported as an approximation rather than a certainty. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegations A – G** be closed as **substantiated**.

§ 87(4-b) § 87(2)(g)

Team: _____

Investigator: _____

	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date